

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 08, 2026
8:30 a.m.

4. NICOLE COOLEY V. IAN COOLEY

23FL0862

This matter is before the court for a review hearing.

On February 11, 2026, the court set the review hearing for June 24, 2026, regarding a possible shift to a week-on, week-off schedule. The court ordered the parties to file and serve any supplemental declarations on or before June 14, 2026.

On June 10, 2026, the Petitioner filed a timely supplemental declaration, a copy of which was served upon the Respondent via mail that same day according to the proof of service, also filed June 10, 2026. Petitioner opposes modifying parenting to a week-on, week-off schedule at this time. She would like to set up additional holiday scheduling and prepare for the next school year.

On June 15, 2026, Respondent filed supplemental declarations.

On June 23, 2026, the court issued a tentative ruling re-referring the parties to a CCRC session¹. Later that day, Respondent's attorney (who filed a Notice of Limited Scope Representation on June 15, 2026) submitted a timely oral argument request on multiple grounds, including an objection to having a commissioner hear the matter instead of a judge.

At the hearing on June 24, 2026, visiting Commissioner William N. Shepherd sustained Respondent's objection and transferred the matter to Department 5. However, this ruling was made in error because: (1) Respondent's objection to a commissioner hearing the matter was untimely where the case has already been heard by a commissioner for over two years; and (2) Commissioner Shepherd did not have the authority to transfer the case to another department of the court. Later on June 24, 2026, the court's Presiding Judge issued a separate minute order vacating Commissioner Shepherd's ruling and re-setting the matter on July 08, 2026, in Department 12.

Since the events of June 24, 2026, the Respondent filed (on June 30, 2026) a Third Supplemental Declaration. Proof of Service attached to the declaration shows a copy was electronically served on the Petitioner on June 30, 2026.

The court finds that the parties are mostly in agreement on the path forward for parenting their children. The court also finds that it is in the best interests of the children for the court to promote that progress and further encourage that the parties work together to resolve the remaining issues on scheduling and interactions between the parties. Therefore, the court re-refers the parties to CCRC on Wednesday, August 26, 2026, at 9:00 am and sets the matter for review on Wednesday, September 09, 2026, at 8:30 a.m. in Department 12 of the court. The court will issue a new Tentative Ruling by 2:00 p.m. the day prior to the new hearing date. Any supplemental declarations in response to the new CCRC report must be filed and served on or before September 02, 2026. The parties are directed

¹ The court's tentative ruling issued June 23, 2026, incorrectly determined that Respondent's June 15, 2026, declarations were untimely. Those declarations have been read and considered.

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to submit the required CCRC questionnaire (Local Form F-17a, which can be downloaded from the court's website or obtained from the Clerk's Office) at least five days prior to the CCRC session.

TENTATIVE RULING #4: THE PARTIES ARE RE-REFERRED TO CCRC ON AUGUST 26, 2026, AT 9:00 A.M. HEARING ON REVIEW OF CCRC IS SET FOR WEDNESDAY, SEPTEMBER 09, 2026. SUPPLEMENTAL DECLARATIONS ARE ORDERED TO BE FILED AND SERVED NO LATER THAN SEPTEMBER 02, 2026.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.